Progressay

Privacy terms and statements | Source archive

Retrieved 10 October 2026

Policy and supporting documents captured

Public documents captured from the competitor website and its linked legal pages. Vendor statements are preserved as published, without independent certification.

About these copies

Web pages are preserved as searchable text snapshots, with their headings and paragraph order retained. Navigation and non-content page elements may be omitted. These are copies of vendor statements, not a GRADIAS assessment of compliance. Source links and any original downloadable files are listed below. Content is retained in its original language.

Sources

01. Privacy Policy

02. Terms and Conditions

Competitor website

01 | Privacy Policy

https://progressay.com/privacy-policy

Webpage text snapshot | Retrieved 10 October 2026

Motive8 Learning Ltd, trading as Progressay, is an edtech company providing online-based learning assessment. Progressay is a limited company with the registration number: 11057813. This privacy policy applies between you, the User of this Website and Progressay, the owner and provider of this Website. Progressay takes the privacy of your information very seriously. This privacy policy applies to our use of any and all Data collected by us or provided by you in relation to your use of the Website.

Please read this privacy policy carefully.

Definitions and interpretation

In this privacy policy, the following definitions are used:

Data | collectively all information that you submit to Progressay via the Website. This definition incorporates, where applicable, the definitions provided in the Data Protection Laws. |

Cookies | a small text file placed on your computer by this Website when you visit certain parts of the Website and/or when you use certain features of the Website. Details of the cookies used by this Website are set out in the clause below (Cookies). |

Data Protection Laws | any applicable law relating to the processing of personal Data, including but not limited to the Directive 96/46/EC (Data Protection Directive) or the GDPR, and any national implementing laws, regulations and secondary legislation, for as long as the GDPR is effective in the UK. |

GDPR | the General Data Protection Regulation (EU) 2016/679. |

Motive8 Learning Ltd, or us | Motive8 Learning Ltd, a company incorporated in England and Wales with registered number 11057813 whose registered office is at International House, 12 Constance Street, London, England, E16 2DQ. |

UK and EU Cookie Law | the Privacy and Electronic Communications (EC Directive) Regulations 2003 as amended by the Privacy and Electronic Communications (EC Directive) (Amendment) Regulations 2011. |

User or you | any third party that accesses the Website and is not either (i) employed by Progressay and acting in the course of their employment or (ii) engaged as a consultant or otherwise providing services to Progressay and accessing the Website in connection with the provision of such services. |

Website | the website that you are currently using, www.progressay.com, and any sub-domains of this site unless expressly excluded by their own terms and conditions. |

In this privacy policy, unless the context requires a different interpretation:

the singular includes the plural and vice versa.

references to sub-clauses, clauses, schedules or appendices are to sub-clauses, clauses, schedules or appendices of this privacy policy.

a reference to a person includes firms, companies, government entities, trusts and partnerships.

"including" is understood to mean "including without limitation".

reference to any statutory provision includes any modification or amendment of it.

the headings and subheadings do not form part of this privacy policy.

Scope of this privacy policy

This privacy policy applies only to the actions of Progressay and Users with respect to this Website. It does not extend to any websites that can be accessed from this Website including, but not limited to, any links we may provide to social media websites.

For purposes of the applicable Data Protection Laws, Progressay is the "data controller". This means that Progressay determines the purposes for which, and the manner in which, your Data is processed.

Data collected

We may collect the following Data, which includes personal Data, from you:

name

date of birth

gender

job title

profession

contact information such as email addresses and telephone numbers

demographic information including but not limited to postcode, Special Education Needs status, Pupil Premium status, prior attainment data

data relating to academic performance including but not limited to grades and quiz results

user activity data including but not limited to open-rates, completion-rates, engagement rates

financial information such as credit / debit card numbers

IP address (automatically collected)

web browser type and version (automatically collected)

operating system (automatically collected)

a list of URLs starting with a referring site, your activity on this Website, and the site you exit to (automatically collected)

schools

exam boards

information regarding curriculum

academic history

any other information needed to help improve the quality of educational material and support Progressay develops

in each case, in accordance with this privacy policy.

How we collect Data

We collect Data in the following ways:

data is given to us by you

data is received from other sources

data is collected automatically

Data that is given to us by you

Progressay will collect your Data in a number of ways, for example:

when you contact us through the Website, by telephone, post, e-mail or through any other means

when you register with us and set up an account to receive our products/services

when you complete surveys that we use for research purposes (although you are not obliged to respond to them)

when you enter a competition or promotion through a social media channel

when you make payments to us, through this Website or otherwise

when you elect to receive marketing communications from us

when you use our services

any other sources used to gain information needed to assist the development of educational material provided on the platform

Data that is received from third parties

Progressay will receive Data about you from the following third parties:

a variety of websites and platforms

trusted partners that work with us to provide Progressay information and marketing services (subject to your marketing preferences and our internal policies and procedures)

any other third parties that provide us with information. This may be used to improve the service we offer

Data that is received from publicly available third party sources

We will receive Data about you from the following publicly available third party sources:

public registers

online (including records that you have made public on social media)

electoral roll

Data that is collected automatically

To the extent that you access the Website, we will collect your Data automatically, for example:

we automatically collect some information about your visit to the Website. This information helps us to make improvements to Website content and navigation, and includes your IP address, the date, times and frequency with which you access the Website and the way you use and interact with its content.

we will collect your Data automatically via cookies, in line with the cookie settings on your browser. For more information about cookies, and how we use them on the Website, see the section below, headed "Cookies".

Our use of Data

Any or all of the above Data may be required by us from time to time in order to provide you with the best possible service and experience when using our Website. Specifically, Data may be used by us for the following reasons:

internal record keeping

improvement of our products / services

transmission by email of marketing materials that may be of interest to you

contact for market research purposes which may be done using email, telephone, fax or mail. Such information may be used to customise or update the Website

We may use your Data for the above purposes if we deem it necessary to do so for our legitimate interests. If you are not satisfied with this, you have the right to object in certain circumstances (see the section headed "Your rights" below).

For the delivery of direct marketing to you via email, we'll need your consent, whether via an opt-in or soft-opt-in:

soft opt-in consent is a specific type of consent which applies when you have previously engaged with us (for example, you contact us to ask us for more details about a particular product/service, and we are marketing similar products/services). Under "soft opt-in" consent, we will take your consent as given unless you opt-out.

for other types of e-marketing, we are required to obtain your explicit consent; that is, you need to take positive and affirmative action when consenting by, for example, checking a tick box that we'll provide.

if you are not satisfied about our approach to marketing, you have the right to withdraw consent at any time. To find out how to withdraw your consent, see the section headed "Your rights" below.

When you register with us and set up an account to receive our services, the legal basis for this processing is the performance of a contract between you and us and/or taking steps, at your request, to enter into such a contract.

We may use your Data to show you Progressay adverts and other content on other websites. If you do not want us to use your data to show you Progressay adverts and other content on other websites, please turn off the relevant cookies (please refer to the section headed "Cookies" below).

Who we share Data with

We may share your Data with the following groups of people for the following reasons:

any of our group companies or affiliates – to ensure the proper administration of your website and business

our employees, agents and/or professional advisors – to enable employees and contractors to carry out their employment as well as to obtain advice from professional agents or advisers

third party service providers who provide services to us which require the processing of personal data – to help third party service providers in receipt of any shared data to perform functions on our behalf to help ensure the website runs smoothly

third party payment providers who process payments made over the Website – to enable third party payment providers to process user payments and refunds

relevant authorities – to facilitate the detection of crime or the collection of taxes or duties

Keeping Data secure

We will use technical and organisational measures to safeguard your Data, for example:

access to your account is controlled by a password and a username that is unique to you.

We store your Data on secure servers.

payment details are encrypted using SSL technology (typically you will see a lock icon or green address bar (or both) in your browser when we use this technology.

Technical and organisational measures include measures to deal with any suspected data breach. If you suspect any misuse or loss or unauthorised access to your Data, please let us know immediately by contacting us via this email address: info@progressay.com.

If you want detailed information from Get Safe Online on how to protect your information and your computers and devices against fraud, identity theft, viruses and many other online problems, please visit www.getsafeonline.org. Get Safe Online is supported by HM Government and leading businesses.

Data retention

Unless a longer retention period is required or permitted by law, we will only hold your Data on our systems for the period necessary to fulfil the purposes outlined in this privacy policy or until you request that the Data be deleted.

Even if we delete your Data, it may persist on backup or archival media for legal, tax or regulatory purposes.

Your rights

You have the following rights in relation to your Data:

Right to access – the right to request

copies of the information we hold about you at any time

that we modify, update or delete such information. If we provide you with access to the information we hold about you, we will not charge you for this, unless your request is "manifestly unfounded or excessive." Where we are legally permitted to do so, we may refuse your request. If we refuse your request, we will tell you the reasons why.

Right to correct – the right to have your Data rectified if it is inaccurate or incomplete

Right to erase – the right to request that we delete or remove your Data from our systems.

Right to restrict our use of your Data – the right to "block" us from using your Data or limit the way in which we can use it.

Right to data portability – the right to request that we move, copy or transfer your Data.

Right to object – the right to object to our use of your Data including where we use it for our legitimate interests.

To make enquiries, exercise any of your rights set out above, or withdraw your consent to the processing of your Data (where consent is our legal basis for processing your Data), please contact us via this e-mail address: info@progressay.com.

If you are not satisfied with the way a complaint you make in relation to your Data is handled by us, you may be able to refer your complaint to the relevant data protection authority. For the UK, this is the Information Commissioner's Office (ICO). The ICO's contact details can be found on their website at https://ico.org.uk/.

It is important that the Data we hold about you is accurate and current. Please keep us informed if your Data changes during the period for which we hold it.

Your duties

Users are responsible for ensuring that any nested users they add are made aware and provide consent to having an account created on their behalf as well as to sharing their data.

Links to other websites

This Website may, from time to time, provide links to other websites. We have no control over such websites and are not responsible for the content of these websites. This privacy policy does not extend to your use of such websites. You are advised to read the privacy policy or statement of other websites prior to using them.

Changes of business ownership and control

Progressay may, from time to time, expand or reduce our business and this may involve the sale and/or the transfer of control of all or part of Motive8 Learning Ltd. Data provided by Users will, where it is relevant to any part of our business so transferred, be transferred along with that part and the new owner or newly controlling party will, under the terms of this privacy policy, be permitted to use the Data for the purposes for which it was originally supplied to us.

We may also disclose Data to a prospective purchaser of our business or any part of it.

In the above instances, we will take steps with the aim of ensuring your privacy is protected.

Cookies

This Website may place and access certain Cookies on your computer. Progressay uses Cookies to improve your experience of using the Website and to improve our range of services. Progressay has carefully chosen these Cookies and has taken steps to ensure that your privacy is protected and respected at all times.

All Cookies used by this Website are used in accordance with current UK and EU Cookie Law.

Before the Website places Cookies on your computer, you will be presented with a message bar requesting your consent to set those Cookies. By giving your consent to the placing of Cookies, you are enabling Progressay to provide a better experience and service to you. You may, if you wish, deny consent to the placing of Cookies; however certain features of the Website may not function fully or as intended.

This Website may place the following Cookies:

Type of Cookie | Purpose |

Strictly necessary cookies | These are cookies that are required for the operation of our website. They include, for example, cookies that enable you to log into secure areas of our website, use a shopping cart or make use of e-billing services. |

Analytical/performance cookies | They allow us to recognise and count the number of visitors and to see how visitors move around our website when they are using it. This helps us to improve the way our website works, for example, by ensuring that users are finding what they are looking for easily. |

Functionality cookies | These are used to recognise you when you return to our website. This enables us to personalise our content for you, greet you by name and remember your preferences (for example, your choice of language or region). |

Targeting cookies | These cookies record your visit to our website, the pages you have visited and the links you have followed. We will use this information to make our website and the advertising displayed on it more relevant to your interests. We may also share this information with third parties for this purpose. |

You can find a list of Cookies that we use in the Cookies Schedule.

You can choose to enable or disable Cookies in your internet browser. By default, most internet browsers accept Cookies but this can be changed. For further details, please consult the help menu in your internet browser.

You can choose to delete Cookies at any time; however you may lose any information that enables you to access the Website more quickly and efficiently including, but not limited to, personalisation settings.

It is recommended that you ensure that your internet browser is up-to-date and that you consult the help and guidance provided by the developer of your internet browser if you are unsure about adjusting your privacy settings.

For more information generally on cookies, including how to disable them, please refer to aboutcookies.org. You will also find details on how to delete cookies from your computer.

General

You may not transfer any of your rights under this privacy policy to any other person. We may transfer our rights under this privacy policy where we reasonably believe your rights will not be affected.

If any court or competent authority finds that any provision of this privacy policy (or part of any provision) is invalid, illegal or unenforceable, that provision or part-provision will, to the extent required, be deemed to be deleted, and the validity and enforceability of the other provisions of this privacy policy will not be affected.

Unless otherwise agreed, no delay, act or omission by a party in exercising any right or remedy will be deemed a waiver of that, or any other, right or remedy.

This Agreement will be governed by and interpreted according to the law of England and Wales. All disputes arising under the Agreement will be subject to the exclusive jurisdiction of the English and Welsh courts.

Changes to this privacy policy

Progressay reserves the right to change this privacy policy as we may deem necessary from time to time or as may be required by law. Any changes will be immediately posted on the Website and you are deemed to have accepted the terms of the privacy policy on your first use of the Website following the alterations.

You may contact Progressay by email at info@progressay.com.

Cookie Schedule

Below is a list of some of the cookies that we use. We have tried to ensure this is complete and up to date, but if you think that we have missed a cookie or there is any discrepancy, please let us know.

Strictly necessary

We use the following strictly necessary cookies:

Description of Cookie | Purpose |

Session cookies | are temporary cookies which only exist during the time you use the website (or more strictly, until you close the browser after using the website). Session cookies help our website remember what you chose on the previous page, avoiding the need to re-enter information and improve your experience whilst using the website. |

Persistent cookies | help us identify you as a unique visitor. This is used to help tailor the content on our website to fit the needs of our website's visitors and helps us improve the user experience. |

Analytical/performance

We use the following analytical/performance cookies:

Description of Cookie | Purpose |

Performance cookies | are used to help us analyse the website's performance as a whole. |

Analytical cookies | are used to help us analyse how users use the website. |

Functionality

We use the following functionality cookies:

Description of Cookie | Purpose |

Functional cookies | are used to identify your computer and analyse traffic patterns on our website. |

Targeting

We do not currently use the following targeting cookies:

Description of Cookie | Purpose |

Targeting cookies | are used to enable us to show you adverts while you are browsing our website and other websites on the internet. |

02 | Terms and Conditions

https://progressay.com/terms-conditions

Webpage text snapshot | Retrieved 10 October 2026

Please read all these terms and conditions.

As we can accept your order and make a legally enforceable agreement without further reference to you, you must read these terms and conditions to make sure that they contain all that you want and nothing that you are not happy with. If you are not sure about anything, just phone us on 0208 065 5311.

1. Application

These Terms and Conditions will apply to the purchase of the services and goods by you (the Customer or you). We are Motive8 Learning Limited whose trading name is Progressay, a company registered in England and Wales under number 11057813 whose registered office is at Unit 17A, Pall Mall Deposit, 124-128 Barlby Road, W10 6BL with email address info@progressay.com; telephone number 0208 065 5311; (the Supplier or us or we).

These are the terms on which we sell all Services to you. Before placing an order on the Website, you will be asked to agree to these Terms and Conditions by clicking on the button marked 'I Accept'. If you do not click on the button, you will not be able to complete your Order. You can only purchase the Services and Goods from the Website if you are eligible to enter into a contract and are at least 18 years old.

2. Interpretation

Consumer means an individual acting for purposes which are wholly or mainly outside his or her trade, business, craft or profession;

Contract means the legally-binding agreement between you and us for the supply of the Services;

Delivery Location means the Supplier's premises or other location where the Services are to be supplied, as set out in the Order;

Durable Medium means paper or email, or any other medium that allows information to be addressed personally to the recipient, enables the recipient to store the information in a way accessible for future reference for a period that is long enough for the purposes of the information, and allows the unchanged reproduction of the information stored;

Goods means any goods that we supply to you with the Services, of the number and description as set out in the Order;

Order means the Customer's order for the Services from the Supplier as submitted following the step by step process set out on the Website;

Privacy Policy means the terms which set out how we will deal with confidential and personal information received from you via the Website;

Services means the services advertised on the Website, including any Goods, of the number and description set out in the Order;

Website means our website www.progressay.com on which the Services are advertised.

3. Services

The description of the Services and any Goods is as set out in the Website, catalogues, brochures or other form of advertisement. Any description is for illustrative purposes only and there may be small discrepancies in the size and colour of any Goods supplied.

In the case of Services and any Goods made to your special requirements, it is your responsibility to ensure that any information or specification you provide is accurate.

All Services which appear on the Website are subject to availability.

We can make changes to the Services which are necessary to comply with any applicable law or safety requirement. We will notify you of these changes.

4. Customer responsibilities

You must co-operate with us in all matters relating to the Services, provide us and our authorised employees and representatives with access to any premises under your control as required, provide us with all information required to perform the Services and obtain any necessary licences and consents (unless otherwise agreed).

Failure to comply with the above is a Customer default which entitles us to suspend performance of the Services until you remedy it or if you fail to remedy it following our request, we can terminate the Contract with immediate effect on written notice to you.

5. Personal information and Registration

When registering to use the Website you must set up a username and password. You remain responsible for all actions taken under the chosen username and password and undertake not to disclose your username and password to anyone else and keep them secret.

We retain and use all information strictly under the Privacy Policy.

We may contact you by using e-mail or other electronic communication methods and by pre-paid post and you expressly agree to this.

6. Basis of Sale

The description of the Services and any Goods in our website does not constitute a contractual offer to sell the Services or Goods. When an Order has been submitted on the Website, we can reject it for any reason, although we will try to tell you the reason without delay.

The Order process is set out on the Website. Each step allows you to check and amend any errors before submitting the Order. It is your responsibility to check that you have used the ordering process correctly.

A Contract will be formed for the Services ordered only when you receive an email from us confirming the Order (Order Confirmation). You must ensure that the Order Confirmation is complete and accurate and inform us immediately of any errors. We are not responsible for any inaccuracies in the Order placed by you. By placing an Order you agree to us giving you confirmation of the Contract by means of an email with all information in it (i.e. the Order Confirmation). You will receive the Order Confirmation within a reasonable time after making the Contract, but in any event not later than the delivery of any Goods supplied under the Contract, and before performance begins of any of the Services.

Any quotation or estimate of Fees (as defined below) is valid for a maximum period of 7 days from its date, unless we expressly withdraw it at an earlier time.

No variation of the Contract, whether about description of the Services, Fees or otherwise, can be made after it has been entered into unless the variation is agreed by the Customer and the Supplier in writing.

We intend that these Terms and Conditions apply only to a Contract entered into by you as a Consumer. If this is not the case, you must tell us, so that we can provide you with a different contract with terms which are more appropriate for you and which might, in some respects, be better for you, e.g. by giving you rights as a business.

7. Fees and Payment

The fees (Fees) for the Services, the price of any Goods (if not included in the Fees) and any additional delivery or other charges is that set out on the Website at the date we accept the Order or such other price as we may agree in writing. Prices for Services may be calculated on a fixed price or on a standard daily rate basis.

Fees and charges include VAT at the rate applicable at the time of the Order.

You must pay by submitting your card details with your Order and we can take payment immediately or otherwise before delivery of the Services.

8. Delivery

We will deliver the Services, including any Goods, to the Delivery Location by the time or within the agreed period or, failing any agreement:

in the case of Services, within a reasonable time; and

in the case of Goods, without undue delay and, in any event, not more than 30 days after the day on which the Contract is entered into.

In any case, regardless of events beyond our control, if we do not deliver the Services on time, you can require us to reduce the Fees or charges by an appropriate amount (including the right to receive a refund for anything already paid above the reduced amount). The amount of the reduction can, where appropriate, be up to the full amount of the Fees or charges.

In any case, regardless of events beyond our control, if we do not deliver the Goods on time, you can (in addition to any other remedies) treat the Contract at an end if:

we have refused to deliver the Goods, or if delivery on time is essential taking into account all the relevant circumstances at the time the Contract was made, or you said to us before the Contract was made that delivery on time was essential; or

after we have failed to deliver on time, you have specified a later period which is appropriate to the circumstances and we have not delivered within that period.

If you treat the Contract at an end, we will (in addition to other remedies) promptly return all payments made under the Contract.

If you were entitled to treat the Contract at an end, but do not do so, you are not prevented from cancelling the Order for any Goods or rejecting Goods that have been delivered and, if you do this, we will (in addition to other remedies) without delay return all payments made under the Contract for any such cancelled or rejected Goods. If the Goods have been delivered, you must return them to us or allow us to collect them from you and we will pay the costs of this.

If any Goods form a commercial unit (a unit is a commercial unit if division of the unit would materially impair the value of the goods or the character of the unit) you cannot cancel or reject the Order for some of those Goods without also cancelling or rejecting the Order for the rest of them.

We do not generally deliver to addresses outside England and Wales, Scotland, Northern Ireland, the Isle of Man and Channel Islands. If, however, we accept an Order for delivery outside that area, you may need to pay import duties or other taxes, as we will not pay them.

You agree we may deliver the Goods in instalments if we suffer a shortage of stock or other genuine and fair reason, subject to the above provisions and provided you are not liable for extra charges.

If you or your nominee fail, through no fault of ours, to take delivery of the Services at the Delivery Location, we may charge the reasonable costs of storing and redelivering them.

The Goods will become your responsibility from the completion of delivery or Customer collection. You must, if reasonably practicable, examine the Goods before accepting them.

9. Risk and Title

Risk of damage to, or loss of, any Goods will pass to you when the Goods are delivered to you.

You do not own the Goods until we have received payment in full. If full payment is overdue or a step occurs towards your bankruptcy, we can choose, by notice, to cancel any delivery and end any right to use the Goods still owned by you, in which case you must return them or allow us to collect them.

10. Withdrawal and cancellation

You can withdraw the Order by telling us before the Contract is made, if you simply wish to change your mind and without giving us a reason, and without incurring any liability.

This is a distance contract (as defined below) which has the cancellation rights (Cancellation Rights) set out below. These Cancellation Rights, however, do not apply to a contract for the following goods and services (with no others) in the following circumstances:

goods that are made to your specifications or are clearly personalised;

goods which are liable to deteriorate or expire rapidly.

Right to cancel

Subject as stated in these Terms and Conditions, you can cancel this contract within 14 days without giving any reason.

The cancellation period will expire after 14 days from the day on which you acquire, or a third party, other than the carrier, indicated by you, acquires physical possession of the last of the Goods. In a contract for the supply of services only (without goods), the cancellation period will expire 14 days from the day the Contract was entered into. In a contract for the supply of goods over time (i.e. subscriptions), the right to cancel will be 14 days after the first delivery.

To exercise the right to cancel, you must inform us of your decision to cancel this Contract by a clear statement setting out your decision (e.g. a letter sent by post, fax or email). You can use the model cancellation form below, but it is not obligatory. In any event, you must be able to show clear evidence of when the cancellation was made, so you may decide to use the model cancellation form.

You can also electronically fill in and submit the model cancellation form or any other clear statement of the Customer's decision to cancel the Contract on our website www.progressay.com. If you use this option, we will communicate to you an acknowledgement of receipt of such a cancellation in a Durable Medium (e.g. by email) without delay.

To meet the cancellation deadline, it is sufficient for you to send your communication concerning your exercise of the right to cancel before the cancellation period has expired.

Commencement of Services in the cancellation period

We must not begin the supply of a service (being part of the Services) before the end of the cancellation period unless you have made an express request for the service.

Effects of cancellation in the cancellation period

Except as set out below, if you cancel this Contract, we will reimburse to you all payments received from you, including the costs of delivery (except for the supplementary costs arising if you chose a type of delivery other than the least expensive type of standard delivery offered by us).

Payment for Services commenced during the cancellation period

Where a service is supplied (being part of the Service) before the end of the cancellation period in response to your express request to do so, you must pay an amount for the supply of the service for the period for which it is supplied, ending with the time when we are informed of your decision to cancel the Contract. This amount is in proportion to what has been supplied in comparison with the full coverage of the Contract. This amount is to be calculated on the basis of the total price agreed in the Contract or, if the total price were to be excessive, on the basis of the market value of the service that has been supplied, calculated by comparing prices for equivalent services supplied by other traders. You will bear no cost for supply of that service, in full or in part, in this cancellation period if that service is not supplied in response to such a request.

Deduction for Goods supplied

We may make a deduction from the reimbursement for loss in value of any Goods supplied, if the loss is the result of unnecessary handling by you (i.e. handling the Goods beyond what is necessary to establish the nature, characteristics and functioning of the Goods: e.g. it goes beyond the sort of handling that might be reasonably allowed in a shop). This is because you are liable for that loss and, if that deduction is not made, you must pay us the amount of that loss.

Timing of reimbursement

If we have not offered to collect the Goods, we will make the reimbursement without undue delay, and not later than:

14 days after the day we receive back from you any Goods supplied, or

(if earlier) 14 days after the day you provide evidence that you have sent back the Goods.

If we have offered to collect the Goods or if no Goods were supplied or to be supplied (i.e. it is a contract for the supply of services only), we will make the reimbursement without undue delay, and not later than 14 days after the day on which we are informed about your decision to cancel this Contract.

We will make the reimbursement using the same means of payment as you used for the initial transaction, unless you have expressly agreed otherwise; in any event, you will not incur any fees as a result of the reimbursement.

Returning Goods

If you have received Goods in connection with the Contract which you have cancelled, you must send back the Goods or hand them over to us at Unit 17A, Pall Mall Deposit, 124-128 Barlby Road, W10 6BL without delay and in any event not later than 14 days from the day on which you communicate to us your cancellation of this Contract. The deadline is met if you send back the Goods before the period of 14 days has expired. You agree that you will have to bear the cost of returning the Goods.

For the purposes of these Cancellation Rights, these words have the following meanings:

distance contract means a contract concluded between a trader and a consumer under an organised distance sales or service-provision scheme without the simultaneous physical presence of the trader and the consumer, with the exclusive use of one or more means of distance communication up to and including the time at which the contract is concluded;

sales contract means a contract under which a trader transfers or agrees to transfer the ownership of goods to a consumer and the consumer pays or agrees to pay the price, including any contract that has both goods and services as its object.

11. Conformity

We have a legal duty to supply the Goods in conformity with the Contract, and will not have conformed if it does not meet the following obligation.

Upon delivery, the Goods will:

be of satisfactory quality;

be reasonably fit for any particular purpose for which you buy the Goods which, before the Contract is made, you made known to us (unless you do not actually rely, or it is unreasonable for you to rely, on our skill and judgment) and be fit for any purpose held out by us or set out in the Contract; and

conform to their description.

It is not a failure to conform if the failure has its origin in your materials.

We will supply the Services with reasonable skill and care.

We will provide the following after-sales service: the supplier will support the customer in installing and activating their new subscription.

In relation to the Services, anything we say or write to you, or anything someone else says or writes to you on our behalf, about us or about the Services, is a term of the Contract (which we must comply with) if you take it into account when deciding to enter this Contract, or when making any decision about the Services after entering into this Contract. Anything you take into account is subject to anything that qualified it and was said or written to you by us or on behalf of us on the same occasion, and any change to it that has been expressly agreed between us (before entering this Contract or later).

12. Duration, termination and suspension

The Contract continues as long as it takes us to perform the Services.

Either you or we may terminate the Contract or suspend the Services at any time by a written notice of termination or suspension to the other if that other:

commits a serious breach, or series of breaches resulting in a serious breach, of the Contract and the breach either cannot be fixed or is not fixed within 30 days of the written notice; or

is subject to any step towards its bankruptcy or liquidation.

On termination of the Contract for any reason, any of our respective remaining rights and liabilities will not be affected.

13. Successors and our sub-contractors

Either party can transfer the benefit of this Contract to someone else, and will remain liable to the other for its obligations under the Contract. The Supplier will be liable for the acts of any sub-contractors who it chooses to help perform its duties.

14. Circumstances beyond the control of either party

In the event of any failure by a party because of something beyond its reasonable control:

the party will advise the other party as soon as reasonably practicable; and

the party's obligations will be suspended so far as is reasonable, provided that that party will act reasonably, and the party will not be liable for any failure which it could not reasonably avoid, but this will not affect the Customer's above rights relating to delivery (and the right to cancel above).

15. Privacy

Your privacy is critical to us. We respect your privacy and comply with the General Data Protection Regulation with regard to your personal information.

These Terms and Conditions should be read alongside, and are in addition to our policies, including our privacy policy and cookies policy.

We are a Data Controller of the Personal Data we Process in providing the Services and Goods to you. Where you supply Personal Data to us so we can provide Services and Goods to you, and we Process that Personal Data in the course of providing the Services and Goods to you, we will comply with our obligations imposed by the Data Protection Laws:

before or at the time of collecting Personal Data, we will identify the purposes for which information is being collected;

we will only Process Personal Data for the purposes identified;

we will respect your rights in relation to your Personal Data; and

we will implement technical and organisational measures to ensure your Personal Data is secure.

For any enquiries or complaints regarding data privacy, you can e-mail: info@progressay.com.

16. Excluding liability

The Supplier does not exclude liability for: (i) any fraudulent act or omission; or (ii) death or personal injury caused by negligence or breach of the Supplier's other legal obligations. Subject to this, we are not liable for (i) loss which was not reasonably foreseeable to both parties at the time when the Contract was made, or (ii) loss (e.g. loss of profit) to your business, trade, craft or profession which would not be suffered by a Consumer – because we believe you are not buying the Services and Goods wholly or mainly for your business, trade, craft or profession.

17. Governing law, jurisdiction and complaints

The Contract (including any non-contractual matters) is governed by the law of England and Wales.

Disputes can be submitted to the jurisdiction of the courts of England and Wales or, where the Customer lives in Scotland or Northern Ireland, in the courts of respectively Scotland or Northern Ireland.

We try to avoid any dispute, so we deal with complaints as follows: if a dispute occurs customers should contact us to find a solution. We will aim to respond with an appropriate solution within 5 days.

18. Attribution

These terms and conditions were created using a document from Rocket Lawyer.

Model cancellation form

To,

Motive8 Learning Limited,

Unit 17A, Pall Mall Deposit

124-128 Barlby Road, W10 6BL

Email address: info@progressay.com

Telephone number: 0208 065 5311

I/We [*] hereby give notice that I/We [*] cancel my/our [*] contract of sale of the following goods [*] / for the supply of the following service [*], ordered on [*] / received on [*] _____ (date received)

Name of consumer(s):

Address of consumer(s):

Date

[*] Delete as appropriate.